

**BEFORE THE FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES
WASHINGTON, D.C.**

DOCKET NO. 25-24

**SOUTHERN INTERNATIONAL CO., LTD.,
Complainant,**

v.

**DAYNAMEZ GROUP OF COMPANIES LLC,
Respondent.**

**COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.'S
MOTION FOR LEAVE TO FILE A LIMITED REPLY TO
RESPONDENT'S RESPONSE TO DKT. 51 (DKT. 52)**

Complainant Southern International Co., Ltd. ("**SIC**"), appearing through its Director and authorized corporate representative, respectfully moves under 46 C.F.R. §§ 502.69(a), (g), 502.71(a), (c), and 502.150(a)(4) for leave to file the attached [Proposed] Complainant Southern International Co., Ltd.'s Limited Reply in Further Support of Its Expedited Motion to Compel Responses to Second Written Discovery and for Limited Related Relief ("**Proposed Limited Reply**"), submitted with this Motion as Exhibit A.

Extraordinary circumstances warrant a short reply because Respondent Daynamez Group of Companies LLC ("**Daynamez**") filed its Response to Motion to Compel Discovery, received and docketed on August 25, 2026 as Dkt. 52 ("**Dkt. 52**"), only after the shortened response period established for Dkt. 51 had expired and after the August 24 discovery cutoff. Dkt. 52 raises, for the first time in opposition to Dkt. 51, specific numerosity and burden arguments, a disputed assertion that SIC admitted owing \$149,990, a shipment count that does not match the operative complaint, and authorities not previously addressed in SIC's opening motion, while still not serving the Second Written Discovery responses that Dkt. 51 seeks to compel. If the Presiding Officer considers Dkt. 52 notwithstanding its timing, a concise reply will permit those newly raised matters to be addressed on an accurate record without expanding the relief requested in Dkt. 51.

SIC does not ask through this Motion to strike Dkt. 52, to obtain terminating sanctions, or to enlarge Dkt. 51. If the Presiding Officer declines to consider Dkt. 52 because of its untimeliness, this Motion may be denied as moot. If Dkt. 52 is considered, however, the attached Proposed Limited Reply provides a narrow and efficient means to address the new matters it raises.

I. COMPLIANCE WITH RULE 502.71(a)

1. On August 26, 2026, SIC emailed Daynamez's counsel to identify this anticipated Motion for Leave concerning Dkt. 52, describe the limited scope of the proposed reply, determine whether Daynamez opposed the requested relief, and ask whether any opposition could be narrowed or any identified issue could be avoided. SIC requested Daynamez's position by 6:00 p.m. EDT on August 26, 2026. A copy of the Rule 502.71(a) conferral correspondence is submitted with this Motion as Exhibit B.
2. Later on August 26, 2026, Daynamez's counsel responded by email that Daynamez opposes the requested leave, reiterated its positions that the discovery is excessive and that SIC allegedly owes Daynamez money, and did not identify any narrowing of the proposed reply or any issue that could be avoided. Ex. B. This Motion is therefore opposed. SIC has completed the good-faith conferral required by Rule 502.71(a).
3. In this same docket, the Presiding Officer has already held that an email exchange may satisfy Rule 502.71(a) where SIC advised Daynamez of the anticipated limited-reply motion, described its purpose, and requested Daynamez's position. Order on Complainant's Motion for Leave to File Reply, Dkt. 48, at 2 (ALJ Aug. 4, 2026). SIC follows that same procedure here.

II. RELEVANT PROCEDURAL BACKGROUND

4. On August 18, 2026, SIC filed its Expedited Motion to Compel Responses to Second Written Discovery and for Limited Related Relief. Dkt. 51. The motion concerns Daynamez's complete failure to serve answers, objections, written responses, or document production in response to SIC's Second Written Discovery served July 14, 2026. Dkt. 51 at 1-3.
5. The Second Written Discovery responses were due August 13, 2026. Dkt. 51 at 2-3. The Scheduling Order set August 24, 2026 as the close of discovery. Dkt. 33. Because ordinary motion briefing would run through or beyond that cutoff, SIC requested expedited treatment. Dkt. 51 at 2.
6. On August 19, 2026, the Office of Administrative Law Judges advised all parties by email that, in order to permit a ruling on Dkt. 51 while preserving the existing schedule to the extent possible, "the time for Respondent to respond is shortened from seven days to 6 pm EDT August 19, 2026." The same email advised that Judge Hervey was out of the office until September 7, 2026. A copy of the August 19, 2026 OALJ procedural email is submitted as Exhibit C. Daynamez did not serve a response by the 6:00 p.m. EDT deadline.
7. On August 25, 2026, the Federal Maritime Commission received and docketed as Dkt. 52 Daynamez's "Response to Motion to Compel Discovery." Dkt. 52 asks that Dkt. 51 be denied and, among other things, asserts that SIC served "48 new Requests for Production," that the "new Requests for Admission number 110,"

and that there are “48 interrogatories”; objects that Interrogatory No. 25 seeks a legal conclusion; characterizes the discovery as abusive, unduly burdensome, and harassment; asserts that SIC admitted owing Daynamez \$149,990; states that the Complaint seeks details concerning 525 shipments; cites *Ree v. Royal Caribbean Cruises Ltd. and Odyssea Stevedoring of Puerto Rico, Inc.*; and suggests that SIC should take a deposition instead. Dkt. 52 ¶¶ 4–14.

8. Dkt. 52 is an opposition brief; it does not itself provide verified answers to Second Interrogatories Nos. 19–45, written request-by-request responses to Second Requests for Production Nos. 31–48, or signed answers or objections to Second Requests for Admission Nos. 25–110. Docketing Dkt. 52 does not resolve the timeliness of its newly asserted objections; it does, however, remove any uncertainty that those arguments have been entered on the public docket and may be presented to the Presiding Officer in connection with Dkt. 51.

III. GOVERNING STANDARD

9. Discovery motions are non-dispositive motions. 46 C.F.R. § 502.69(g). Before filing a non-dispositive motion, the movant must make a good-faith effort to determine whether the relief is opposed and, if so, to narrow the areas of disagreement. *Id.* § 502.71(a).
10. Two Commission provisions govern replies in this setting. Rule 502.71(c) provides generally that the moving party may not file a reply to a response to a non-dispositive motion unless requested by the Commission or Presiding Officer, or upon a showing of extraordinary circumstances. Rule 502.150(a)(4), which specifically governs motions to compel, likewise provides that a reply to a response “is not allowed unless requested by the presiding officer, or upon a showing of extraordinary circumstances.” 46 C.F.R. §§ 502.71(c), 502.150(a)(4). In Dkt. 48, the Presiding Officer granted SIC leave to file a limited reply because Daynamez had served materially new discovery responses with its opposition, and SIC otherwise would have had no opportunity to address the sufficiency of those later-served responses; the Presiding Officer also found that the reply would provide information needed to decide whether deficiencies remained. Dkt. 48 at 2–3. That order does not create an automatic right to reply, but it confirms that the extraordinary-circumstances standard may be met where later procedural developments leave the moving party without a fair opportunity to address material matters needed to resolve a discovery motion.
11. SIC does not ask the Presiding Officer, through this Motion, to strike Dkt. 52 or to rule that it must be disregarded as untimely. The requested relief is narrower: if the Presiding Officer considers Dkt. 52 in deciding Dkt. 51, SIC seeks leave to address only the new factual and legal matters identified below.

IV. EXTRAORDINARY CIRCUMSTANCES WARRANT A LIMITED REPLY

A. The timing and content of Dkt. 52 create an unusual procedural record.

12. This is not a request for a routine reply merely because Daynamez opposed a motion. Dkt. 51 was filed on an expedited basis to address complete nonresponse before the discovery cutoff; the OALJ expressly shortened the response period to 6:00 p.m. EDT on August 19, 2026 in order to preserve the existing schedule to the extent possible; and Daynamez filed Dkt. 52 only after that shortened period and after discovery closed. If Dkt. 52 is considered, SIC otherwise would have no authorized filing in which to correct or address material factual and legal propositions introduced after SIC's opening motion and the expedited response period.
13. Several of those propositions are material to disposition of Dkt. 51. Dkt. 52's numerical descriptions do not match the actual numbering of the Second Discovery sets; its "525 shipments" statement does not match the operative Second Amended Complaint; its objection that Interrogatory No. 25 seeks a legal conclusion implicates Rule 502.145(a)(2), the untimely-objection waiver in Rule 502.145(b)(4), and the same discovery authority on which Respondent relies; and its burden and harassment assertions seek blanket denial without a request-specific showing. The Proposed Limited Reply addresses those matters without repeating Dkt. 51.
14. Dkt. 48 involved a different factual predicate-later-served discovery responses that materially changed the record, but its reasoning is instructive. The Presiding Officer focused on whether SIC otherwise would have an opportunity to address material later developments and whether a focused reply would assist resolution of the discovery motion. Dkt. 48 at 2–3. The same procedural considerations support narrowly tailored leave here if Dkt. 52 is considered, because Dkt. 52 introduces material factual descriptions and authorities that were not before SIC when Dkt. 51 was filed and that bear directly on Daynamez's request for blanket denial.

B. The Proposed Limited Reply is narrowly tailored and will assist resolution of Dkt. 51.

15. The Proposed Limited Reply is confined to seven points raised by Dkt. 52: (1) an opposition brief does not constitute the missing discovery responses; (2) the correct numbers of newly served Interrogatories, RFPs, and RFAs; (3) the already-preserved Rule 502.145(a)(1) discrete-subpart issue and Dkt. 51's alternative relief; (4) Rule 502.145(a)(2), Rule 502.145(b)(4), and the proper scope and timeliness of the objection to Interrogatory No. 25; (5) the absence of a concrete, request-specific basis for blanket burden or harassment relief; (6) the incorrect 525-shipment statement; and (7) the limited significance of Daynamez's disputed \$149,990 accounting contention, including its related request to condition the need for discovery on first determining whether money remains outstanding.

16. The Proposed Limited Reply does not serve new discovery, expand the relief requested in Dkt. 51, raise a new Shipping Act merits theory, seek an authenticity or fabrication finding, ask the Presiding Officer to adjudicate a disputed accounting balance on this motion, or request terminating sanctions. It expressly preserves Dkt. 51's existing alternative treatment of the fifty-interrogatory limit rather than asserting that the issue disappears because the sets contain only forty-five numbered interrogatories cumulatively.

C. A short reply will not unfairly prejudice Daynamez.

17. Daynamez chose the factual assertions and authorities presented in Dkt. 52. A concise reply limited to those matters causes no unfair prejudice and will assist the Presiding Officer in deciding Dkt. 51 on an accurately framed record. Dkt. 48 also rejected a requested sur-reply where no extraordinary factual predicate supported one. Dkt. 48 at 3. SIC therefore does not request or assume any further briefing beyond what the Presiding Officer considers necessary.

V. CONCLUSION

For the foregoing reasons, if the Presiding Officer considers Dkt. 52 notwithstanding its timing, SIC respectfully requests leave to file the attached Proposed Limited Reply and requests that the Proposed Limited Reply be deemed filed as of the date leave is granted, consistent with Dkt. 48. Alternatively, SIC requests permission to file the Proposed Limited Reply within one business day after entry of the order. If Dkt. 52 is not considered, SIC respectfully acknowledges that this Motion may be denied as moot.

Respectfully submitted,

SOUTHERN INTERNATIONAL CO., LTD.



By: _____ **Giám Đốc**
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Dated: August 27, 2026

VERIFICATION

I, Nguyen Tien Phuong, am the Director and duly authorized corporate representative of Southern International Co., Ltd. I have read the foregoing Motion for Leave. The factual statements contained therein are true and correct based on my personal knowledge and my review of Southern International Co., Ltd.'s business, discovery, service, and litigation records.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on August 27, 2026, at Ho Chi Minh City, Vietnam.



By: _____

Nguyen Tien Phuong

Director and Authorized Corporate Representative

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Dated: August 27, 2026

Giám Đốc

Nguyễn Tiến Phương

CERTIFICATE OF SERVICE

I certify that on August 27, 2026, a true and correct copy of the foregoing COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.'S MOTION FOR LEAVE TO FILE A LIMITED REPLY TO RESPONDENT'S RESPONSE TO DKT. 51 (DKT. 52), together with Exhibit A (the Proposed Limited Reply), Exhibit B (the parties' Rule 502.71(a) conferral correspondence), and Exhibit C (the August 19, 2026 OALJ procedural email shortening Respondent's response deadline), was filed by electronic mail with the Secretary of the Federal Maritime Commission, with a courtesy copy to the Office of Administrative Law Judges, and was served by electronic mail upon Respondent's counsel and representative as follows:

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Dated: August 27, 2026